

25LBCV02848 25LBCV02848

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-18

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Case Number: 25LBCV02848 Hearing Date: August 18, 2026 Dept: S27

1. Background

Facts

Plaintiff, Michelle Broza filed

this action against Defendants, City of Los Angeles and Charles Lamont for damages arising out of a trip and fall on a sidewalk owned by the City and adjacent to the property owned by Lamont.

Plaintiff filed her complaint on

10/15/26. Plaintiff filed proof of

service on Lamont by substitute service on 11/03/25; the POS indicates

Plaintiff's registered process server served Lamont by substitute service on

Maria Ann Howell, the co-occupant of 941 W. 29th St., on 10/30/25,

with the papers mailed thereafter.

The City answered and filed a

cross-complaint against Lamont on 12/22/25.

2. Motion

to Vacate Default

a.

Default

On 1/28/26, Plaintiff attempted to

have Defendant's default entered, but the Clerk rejected the request due to

Plaintiff's failure to include a declaration re: diligence. On 2/03/26, Plaintiff filed a declaration re:

diligence, which shows efforts were made to serve Defendant on 10/25/25 and

10/27/25 before substitute service was effectuated on 10/30/25. On 2/04/26, at Plaintiff's request, the Clerk entered Defendant's default.

b. Default

Judgment

On 5/29/26 and 6/01/26, Plaintiff filed papers in support of a request for judgment against Defendant. The Court has not, to date, entered judgment. Indeed, a default judgment prove-up hearing is scheduled for 12/04/26, three days before the jury trial in the action.

c. Ex

Parte Application

On 6/26/26, Defendant filed an ex parte application to set aside the default entered against him. On 6/29/26, Plaintiff filed opposition to the application. The hearing on the application was continued, and ultimately the matter was set for hearing on 8/20/26. The Court's minute order was not expressly clear on this issue, but it appears the ex parte moving and opposition papers are intended to serve as the motion and opposition papers.

d. Notice

of Motion

Defendant's notice of motion indicates he moves to vacate the default entered against him pursuant to CCP §473(b). His points and authorities, however, cite not only §473(b), but also §473(d) and §473.5.

e. Analysis

Defendant declares his address is a multi-unit building, and he does not reside in the same unit as Howell, the person who was served on his behalf. He declares Howell did not tell him of the summons and complaint, and he was never personally served with the summons and complaint. Defendant does not expressly indicate he did not receive the mail-served copy of the summons and complaint, does not explain whether the building has unit numbers, and does not indicate how he learned of the lawsuit filed against him.

Plaintiff, in opposition to the motion, indicates the summons and complaint were served at Defendant's usual mailing address and were mailed thereafter, which is all that is required to effectuate substitute service.

Plaintiff's opposition does not include any evidence and relies solely on the proof of service to support the conclusion that service was appropriate.

In light of the strong policy in favor of trial on the merits, the Court is inclined to grant the motion and vacate the default. There is no meaningful prejudice to Plaintiff in the event the motion is granted, especially because the case remains pending against the City and Plaintiff must prepare for trial regardless of the outcome of this motion.

f. Proposed
Responsive Pleading

CCP §473(b) requires the moving papers to be accompanied by a proposed responsive pleading. The Court cannot locate a proposed responsive pleading. Plaintiff notes this failure at page 1, line 27 of the opposition.

The Court is not inclined to deny the motion on this ground, but will require Defendant to file a responsive pleading prior to the hearing if Defendant wishes to have relief granted.

g. Attorneys'
Fees

The more difficult issue is whether to impose an attorneys' fees award or not.

As noted above, Defendant's notice of motion indicates the motion is brought per CCP §473(b), which contemplates an award of fees, but the points and authorities also rely on §473(d) and §473.5, neither of which have a similar fee provision.

Because Plaintiff noticed his motion under §473(b), the Court will analyze the fees issue under that section. §473(c) provides the Court with

discretion, when granting a motion per §473(b), to impose a penalty of no greater than \$1000 upon the offending attorney or party, direct the offending attorney to pay an amount not to exceed \$1000 to the State Bar fund, and/or grant other relief as appropriate.

On balance, the Court is inclined to grant Plaintiff's request that Defendant pay a penalty of \$1000 based on Defendant's failure to meaningfully explain the details of service and/or of how he ultimately learned of the lawsuit.

h.

Conclusion

If the parties submit on the tentative, the motion will be granted and Defendant will be ordered to pay Plaintiff \$1000 in sanctions. If the parties do not submit on the tentative, Defendant must file a proposed responsive pleading prior to the hearing if Defendant wishes to have the Court grant the motion on its merits.

i.

Notice

Defendant is ordered to give notice.